

9.	26PR0151	IN THE MATTER OF JAMES BARNETT
PETITION HEARING		

On May 27, 2026, Petitioner filed a Petition for Order Confirming Trust Assets (Probate Code § 850(a)(3). A Notice of Hearing was filed on June 4, 2026. Proof of Service were filed on June 12, 2026 confirming Morgan Stanley and Bank of America were served. No opposition has been filed.

Petitioner seeks the following relief:

1. The Wendy Barnett's Legacy, Final Wishes & Trust dated February 20, 2025 is a valid trust and that James Barnett is the current trustee thereof; and
2. The assets set forth in Exhibit "E" are assets subject to the management and control of James Barnett, as sole Trustee of The Wendy Barnett's Legacy, Final Wishes & Trust dated February 20, 2025, under the Bill of Transfer and Notice of Assignment document or under Schedule A of the Trust Agreement

The Settlor of Wendy Barnett's Legacy, Final Wishes & Trust dated February 20, 2025 (the "Trust") was Wendy Jean Barnett (the "Settlor"), who died on April 19, 2026. Petitioner, James Barnett ("Petitioner" or "Trustee") is presently acting as Trustee.

Probate Code § 17200, in part, provides:

(a) Except as provided in Section 15800, a trustee or beneficiary of a trust may petition the court under this chapter concerning the internal affairs of the trust or to determine the existence of the trust.

(b) Proceedings concerning the internal affairs of a trust include, but are not limited to, proceedings for any of the following purposes:

(3) Determining the validity of a trust provision.

(5) Settling the accounts and passing upon the acts of the trustee, including the exercise of discretionary powers.

Paragraph 4(a) of the Trust states that Settlor and Petitioner will be the Co-Trustees of the Trust, and that if one of them cannot serve due to death, the other shall continue to serve as sole Trustee of the Trust.

In paragraph 2 of the Trust, the Settlor declared that the property described in schedule A is transferred in Trust to be held, administered, and distributed under the terms of the Trust. Schedule A lists, among other items, the following:

- Bank of America, Account Type: All
- Morgan Stanley, Account Type: Money Market

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- The following stocks and/or bonds:
 - 5,307 shares of Uber Shares issued by Uber Technologies, Certificate Number: XXX2418
 - 391 shares of Common Stock issued by Uber Technologies, Certificate Number XXXXXXX7213

A Bill of Transfer and Notice of Assignment was signed by Settlor on February 20, 2025 which documented her intent to transfer and assign to the Co-Trustees all of Settlor's interests in Schedule A. Settlor also signed letters to her financial institutions informing them that she was the grantor of a living trust and that she had transferred all of her right, title and interest in the referenced accounts to the Trust. She further requested they make note of this transfer and update their records such that the above-referenced account(s) is/are registered in the name of the trust.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief.

Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

- (a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.
- (b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Notice of the hearing and a copy of the Petition were mailed at least 30 days prior to the hearing, to each person claiming an interest in or having title to or possession of the property, as well as any heir or devisee whose interest may be affected by the Petition.

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The Court is inclined to grant Petitioner's request upon receipt of documentary evidence establishing the designated assets belong to Settlor.

TENTATIVE RULING #9:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JULY 20, 2026, IN DEPARTMENT NINE.

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.